

01355718	Smith – Trust	TENTATIVE RULING Case: Smith – Trust 01355718 Calendar No.: 7 Date: 06/17/2026 MOTION TO COMPEL COMPLIANCE WITH SUBPOENA (ROA 230) Petitioner Brian Alexander Smith ("Petitioner"), in propria persona, moves to compel compliance with a subpoena issued to Evelyn Leathers, Notary Public, and Bezaire & Leathers (collectively, "Responding Parties"). A copy of the subject subpoena is not attached to the moving papers, though it is attached to the Opposition to this motion. (ROA 422, Ex. C.) It is not clear whether Petitioner intended to serve the subpoena on two separate witnesses (i.e., on the notary public and on the law firm) or whether Petitioner intended to serve only the notary public. If Petitioner intended the former, a separate subpoena should have been served on each witness. The subpoena does not have an issuance date, but Petitioner alleges that it was personally served on Responding Parties on 10/8/25. Thus, the earliest date on which Responding Parties could have complied is approximately 10/28/25. (Code Civ. Proc. § 2020.410(c).) Moreover, the subpoena has a date of production of 11/3/25. Yet Petitioner filed this motion on 10/20/25 at 8:00 a.m., well before the earliest date of compliance and the date of production demanded in the subpoena. Responding Parties served responses and objections to the subpoena by mail on 10/20/25. Based on the foregoing, the motion was filed prematurely, and the subsequent service of a response to the subpoena renders this motion moot. Therefore, the motion is DENIED. While an award of attorney's fees would be justifiable under Code of Civil Procedure section 1987.2, Responding Parties' request for attorney's fees must be DENIED. A self-represented attorney cannot be awarded attorney's fees, nor can a law firm be awarded attorney's fees when represented by one of its own partners. (<i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 280; <i>Musaelian v. Adams</i> (2009) 45 Cal.4th 512, 517;
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		<i>Carpenter & Zuckerman, LLP v. Cohen</i> (2011) 195 Cal.App.4th 373, 375.)
01426688	Sanburg - Trust	TENTATIVE RULING Case: Sanburg - Trust 01426688 Calendar No.: 8 Date: 06/17/2026 MOTION FOR LEAVE TO AMEND (ROA 158) Petitioner Paula Sanburg Ruby ("Petitioner"), in propria persona, moves for leave to file a Third Amended Petition to add "Phil Kerbis, as co-successor trustee" as a Respondent in this case. This motion came before the court on 4/15/26 at which time it was continued for compliance with California Rules of Court, rule 3.1324. Instead of filing a declaration that complies with Rule 3.1324 and attaching a copy of the Proposed Third Amended Petition to the declaration, Petitioner filed a new motion for leave to amend (ROA 243) along with a compliant declaration (ROA 244). Petitioner also filed the Proposed Third Amended Petition. (ROA 245.) This subsequently filed motion has been set for hearing on 9/2/26. The court understands that these newly filed documents were intended to be supplements to the initially filed motion for leave to amend. Counsel has now fully complied with Rule 3.1324. The motion is GRANTED. Petitioner shall file the Third Amended Petition within 10 days of this ruling. The Third Amended Petition shall be identical in content to the Proposed Third Amended Petition filed by Petitioner on 5/12/16. (ROA 245.) The motion for leave to amend set for 9/2/26 is VACATED.
01451379	Keane – Trust	TENTATIVE RULING Case: Keane – Trust 01451379